

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2018-9021

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR LICENSURE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF WAYNE WENTWORTH, LICENSE NO. LPC (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Wayne Wentworth ("Applicant") as follows:

1. By application dated October 17, 2018, Applicant applied for licensure to practice as a Licensed Professional Counselor ("LPC") in the State of Colorado ("Application").

2. The Board has jurisdiction over Applicant, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").

3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2018-9021. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.

4. Applicant admits the following:

a. On December 3, 1993, Applicant was licensed as a professional counselor in Texas, being issued License No. 12137.

b. On or around October 19, 2006, Applicant entered into an Order with the Texas State Board of Examiners of Professional Counselors ("Texas Board"). Applicant admitted to knowingly engaging in sexual

contact with a client within two (2) years of terminating the client-therapist relationship. Applicant surrendered his license to practice professional counseling in Texas.

c. On October 17, 2018, Applicant submitted the Application.

d. On the Application, Applicant answered “yes” to the question which states: “Have you ever been notified by any state, territory, district, country, United States government agency, or state certification/licensing board of any complaint filed against you relative to the practice of psychotherapy?”

e. On the Application, Applicant answered “yes” to the question which states: “Has any disciplinary action ever been taken regarding any Psychotherapy/drug and alcohol services certification/license or any other healthcare or behavioral health license which you now hold or have ever held, including any disciplinary actions by the U.S. military, U.S. Public Health Service, or other U.S. federal governmental entity?”

f. On the Application, Applicant answered “yes” to the question which states: “Have you ever voluntarily surrendered certification/license to practice psychotherapy or any other healthcare or behavioral health profession in any state?”

g. On around July 13, 2018, the Texas Board reinstated Applicant’s license to practice professional counseling in Texas, being issued License No. 80219.

h. Applicant admitted to disciplinary action in another jurisdiction.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of section 12-43-222(1)(r) and (2), C.R.S., which state:

12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article 43 if he or she:

(r) Has engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in section 18-3-401, C.R.S., with a client during the period of time in which a therapeutic relationship exists or for up to two years after the period in which such a relationship exists.

(2) A disciplinary action relating to a license, registration, or certification to practice a profession licensed, registered, or certified under this article or any related occupation in any other state, territory, or country for disciplinary reasons constitutes prima facie evidence of grounds for disciplinary action, including denial of licensure, registration, or certification, by a board. This subsection (2) applies only to disciplinary actions based upon acts or omissions in such other state, territory, or country substantially similar to those acts or omissions set out as grounds for disciplinary action pursuant to subsection (1) of this section.

6. By virtue of the admissions contained in paragraphs 4 and 5, Applicant specifically agrees to accept a license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by sections 12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a license. Applicant consents to the following limitations to his license within the meaning of section 24-4-104(11), C.R.S. Applicant acknowledges that by accepting this license in lieu of a formal hearing, Applicant waives all remedies outlined in sections 12-43-212 and 24-4-104(9), C.R.S.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Board hereby admonishes Applicant for a violation of section 12-43-222(1)(r) and (2), C.R.S. This Order is effective as a Letter of Admonition, set forth by section 12-43-224(3)(d), C.R.S.

TERMS AND CONDITIONS

8. Applicant will strictly observe the prohibitions set forth in section 12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

9. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

10. In the event Applicant relocates at any time prior to completing the terms of this Order, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

11. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to section 12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

12. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

13. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

14. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to section 12-43-224, C.R.S.

15. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

16. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

17. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

18. This Order shall be admissible as evidence at any hearing held before the Board.

19. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

APPLICANT

Wayne Wentworth
WAYNE WENTWORTH
LPC (Pending)

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

DCh
DARCIE MAGNUSON
Interim Program Director

Effective this 6th day of
February, 2019.